

Complaint Report (CCRB)

CCRB Case No :	202002500	C/V Report Date :	Sat, 03/28/2020 02:06 AM
Complaint Type :	CCRB	Investigator :	Esme Trontz
Complaint Made At :	IAB	Ref. No	20-9487
Received Date (CCRB) :	Thu, 04/02/2020 11:33 AM	Mode :	Phone
Incident Date(s) :	Saturday, 03/28/2020 2:00 AM		
Place of Occurrence:	[REDACTED]	Precinct:	42
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - auto		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POF	Merita Hoxha	Subject Officer	955988	White	265	Physical force - (dragged/pulled) - (F) Unfounded
POF	Merita Hoxha	Subject Officer	955988	White	265	Threat of force (verbal or physical) - (A) Unfounded
POF	Merita Hoxha	Subject Officer	955988	White	265	Frisk - (A) Exonerated
POF	Merita Hoxha	Subject Officer	955988	White	265	Search (of person) - (A) Exonerated
POF	Merita Hoxha	Subject Officer	955988	White	265	Stop - (A) Exonerated
POF	Merita Hoxha	Subject Officer	955988	White	265	Stop - (A) Exonerated

POF	Merita Hoxha	Subject Officer	955988	White	265	Refusal to provide name - (A) Unsubstantiated
POF	Merita Hoxha	Subject Officer	955988	White	265	Refusal to provide shield number - (A) Unfounded
POF	Merita Hoxha	Subject Officer	955988	White	265	Refusal to provide shield number - (A) Unsubstantiated
POF	Merita Hoxha	Subject Officer	955988	White	265	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
POF	Merita Hoxha	Subject Officer	955988	White	265	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
	Officers	Subject Officer				Vehicle stop - (A) Officer(s) Unidentified
	Officers	Subject Officer				Threat of arrest - (A) Unfounded
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Vehicle search - (A) Exonerated
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Stop - (A) Exonerated
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Stop - (A) Exonerated
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Refusal to provide name - (A) Unsubstantiated
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Refusal to provide name - (A) Unfounded
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Refusal to provide shield number - (A) Unfounded
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Refusal to provide shield number - (A) Unsubstantiated
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Vehicle search - (A) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Frisk - (A) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Search (of person) - (A) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Stop - (A) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Stop - (A) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Refusal to provide name - (A) Unsubstantiated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Refusal to provide shield number - (A) Unsubstantiated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
POM	Dennis Vargas	Subject Officer	957245	Hispanic	183	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
POM	Lewellyn Alvarez	Subject Officer	949996	Hispanic	042	Vehicle search - (A) Exonerated
POM	Anthony Alvino	Subject Officer	961613	White	318	Threat of force (verbal or physical) - (A) Exonerated
POM	Anthony Alvino	Subject Officer	961613	White	318	Stop - (A) Exonerated

POM	Anthony Alvino	Subject Officer	961613	White	318	Stop - (A) Exonerated
POM	Anthony Alvino	Subject Officer	961613	White	318	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
POM	Anthony Alvino	Subject Officer	961613	White	318	Failure to provide RTKA card - (A) Substantiated (Command Discipline A)
	An officer	Subject Officer				Word - (D) Officer(s) Unidentified
SGT	Victor Velez	Witness Officer	943924	Hispanic	042	
POM	Marquise Walcott	Witness Officer	961435	Black	042	
POM	Imran Alli	Witness Officer	955709	Hispanic	042	
SGT	Joseph Duerr	Witness Officer	953830	White	042	

Initial Complaint Narrative

§ 87(2)(b) filed this complaint with IAB on March 28, 2020. It was received by the CCRB on April 2, 2020 via IAB log #20-9487. On March 28, 2020, at approximately 2:00 a.m., § 87(2)(b) was driving with her husband near the intersection of § 87(2)(b) in the Bronx. They were pulled over by two unmarked vehicles with unknown license plates and six plain clothes officers. A male officer opened § 87(2)(b)'s door and asked her to step out of the vehicle. When § 87(2)(b) asked why she was being stopped, the male officer undid her seatbelt and a female officer pulled her out of the car, pushed her and held her against the vehicle. The officers stated that they smelled marijuana emitting from the vehicle and began to search the vehicle. No contraband was found and the officers told § 87(2)(b) they could go back into vehicle. The officers then left the location. No summons or enforcement action was taken. The 42 Patrol Supervisor (Sgt. Velez Tax 943924) was asked to respond to the location. ICAD # § 87(2)(b) corresponds to § 87(2)(b)'s 911 call after the incident. On a follow up call with Ms. § 87(2)(b), Sgt. Velez stated that § 87(2)(b) informed him that she believed to hear a male officer call the female officer "Hox." Sgt. Velez believed the stop was conducted by the 42 Crime Team and stated there is a female officer, PO Hoxha assigned to 42 Crime.

Witness
